

Court No. - 21

Case :- WRIT - C No. - 12191 of 2022

Petitioner :- Smt. Shweta Bhatia

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Alok Kumar Srivastava, Anubhav Singh

Counsel for Respondent :- C.S.C., Krishna Agarawal, Mahboob Ahmad

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Dr. Yogendra Kumar Srivastava, J.

None is present for the petitioner even in the revised call.

As the recovery citation is under challenge, let the matter be placed before appropriate bench dealing with such cases.

List as fresh on 13th July, 2022 before the appropriate bench.

When the case is listed next, name of Sri Anubhav Singh shall be shown as counsel for the respondent-Corporation.

Order Date :- 5.7.2022

Pratima

(Dr.Y.K.Srivastava,J.) (Manoj Kumar Gupta, J.)

Court No. - 3

Case :- WRIT - C No. - 12191 of 2022

Petitioner :- Smt. Shweta Bhatia

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Alok Kumar Srivastava

Counsel for Respondent :- C.S.C., Anubhav Singh, Krishna Agarawal, Mahboob Ahmad

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Chandra Kumar Rai, J.

Heard learned counsel for the petitioner and learned counsel for the respondents.

This writ petition has been filed praying for the following reliefs:

"(a) Issue a writ, order or direction in the nature of Certiorari quashing the impugned Demand Notice dated 23.11.2021 issued by the respondent no. 6 and the subsequent Recovery Citation dated 22.03.2022 issued by the respondent no. 5, requiring the petitioner to deposit a sum of Rs. 7,63,724/- (additional charges and interest accrued thereon).

(b) Issue a writ, order or direction in the nature of Certiorari quashing the entire recovery proceedings, initiated in pursuance of Recovery Citation dated 22.03.2022 issued by the respondent no. 5, as against the petitioner in respect of Electricity Connection No. 037663 and Account No. 2400000887.

(c) Issue a writ, order or direction in the nature of Mandamus commanding the respondents not to take any coercive measures, as against the petitioner, for realization of the impugned amount shown in the Demand Notice dated 23.11.2021.

(d) Issue a writ, order or direction in the nature of Mandamus commanding the respondents not to recover any amount from the petitioner as arrears of bill amount/revenue on the basis of the Demand Notice dated 23.11.2021 as well as the subsequent Recovery Citation dated 22.03.2022, issued as against the petitioner in respect of Electricity Connection No. 037663 and Account No. 240000057.

(e) Issue a writ, order or direction in the nature of Mandamus commanding the respondent authorities to re-connect the electricity connection of the petitioner having Electricity Connection No. 037663.

(f) Issue any other writ, order or direction which this Hon'ble Court may deem to be fit and proper in the facts and circumstances of the case.

(g) Award costs of the petition in favour of the petitioner."

Learned counsel for the respondent No. 3/ Power Distribution

Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is ***disposed off*** giving liberty to the petitioner to submit his/ her objection under ***Para 6.5 of U.P. Electricity Supply Code, 2005*** before the respondent No. 3 within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No.3 in accordance with law, expeditiously, preferably within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand notice dated 23.11.2021.

Order Date :- 19.7.2022

SA